

Varadaha Pothuri Manjusha vs Varadha Budha Malleswara Rao on 18 June, 2025

IN THE HIGH COURT OF ANDHRA PRADESH AT AMARAVATI

WEDNESDAY, THE EIGHTEENTH DAY OF JUNE
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRI JUSTICE V. GOPALA KRISHNA RAO

TRANSFER CIVIL MISCELLENOUS PETITION NO: 65 OF 2025

Petition Under Section 24 of the C.P.C. Praying that in the
circumstances stated in the affidavit filed therewith, the High Court may be
pleased to transfer the H.M.O.P. No. 66 of 2023 from the file of Civil
(Senior Division) Judge at Bhimavaram, West Godavari District on

i to the

file of IV Additional District Judge Cum Family Court, VijayawadaI, Krishna
District.

Between:

Varadha @ Pothuri Manjusha, W/o Varadha Budha Malleswara Rao
D/o Pothuri Jagadeesh, Female, Hindu, Age 32Years House wife.
Resident of D.No.3-FA, Saiman Nivas Apartment, Sivalayam Street
Ayodhya Nagar, Vijayawada, NTR District.

...Petitioner

AND

Varadha Budha Malleswara Rao, S/o Veera Kota Venkata Subba Rao.
Male, Hindu, Age38 years. Chartered Accountant, R/o D.No.2-166,
Vuyyala Sthambala Street, Near Veerabhadra Swami temple
Chinamiram, Bhimavaram Mandal, West Godavari District.

...Respondent

LA NO: 1 OF 2025

^^etition under Section 151 CPC praying that in the circumstances
'toed in the affidavit filed in support of the petition, the High Court may be

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□ ; ^ stay of all further proceedings in H.M.O.P. No. 66 of 2023 on the file of the Civil (Senior Division) Judge court at Bhimavaram, West Godavari District.

Counsel for the Petitioner :SRI. KOTHA NAGA SURYA RAO

Counsel for the Respondents: --

The Court made the following Order:

THE HON'BLE SRI JUSTICE V.GOPALA KRISHNA RAO

TRANSFER CIVIL MISCELLANEOUS PETITION No.65 of 2025

ORDER:

Today when the matter has been taken up for hearing, learned counsel for the petitioner has represented that the proof of service Memo dated 16.06.2025, along with the postal track consignment sheet is filed before the Registry and the same is placed on the record. As per the track consignment sheet, the Registered Notice sent to the respondent was served on him on 12.04.2025. Therefore, 'service held sufficient'. None appeared for the respondent.

2. The petitioner/wife filed the present petition under Section 24 of the Code of Civil Procedure, 1908, seeking transfer of H.M.O.P.No.66 of 2023 on the file of the Senior Civil Judge, Bhimavaram, West Godavari District, to the IV Additional District Judge-cum-Family Court, Vijayawada, Krishna District, for trial.

3. The case of the petitioner in brief is as follows;

I. The petitioner is the legally wedded wife of the respondent and their marriage was performed on 12.05.2019, at Alluri Sri Ramaraju Kalayana Vedhika (Multiplex) Bhimavaram, as per the Hindu Rites and Caste Customs. During their wedlock period, the petitioner/wife and the respondent/husband were blessed with a female child on 26.01.2020. In view of the matrimonial disputes between both the spouses, the petitioner/wife has been residing separately along with her female child aged about 4 years at h^r parents' house at Vijayawada, Krishna District and depending upon the mercy of her parents. The petitioner/wife pleaded that in view of the harassment made by the respondent/husband, she lodged a complaint against the respondent and his family members, dated 23.08.2022, in F.I.R.No.538 of 2022, under Section 498-A, 324, 506 r/w 34 of I.P.C. before the Ajith Singh Nagar Police Station, Vijayawada. After completion of investigation, the same was numbered as vide C.C.No.1195 of 2023 on the file of the IV Additional Chief Metropolitan Magistrate, Vijayawada and she filed a Maintenance Case vide F.C.O.P.No.1364 of 2023 on the file

of the IV Additional District Judge- cum- Family Court, Vijayawada, under Section 125 of Cr.P.C, seeking monthly maintenance from the respondent/husband and she filed F.C.O.P.No.1468 of 2023 on the file of the IV Additional District Judge-cum-Family Court Vijayawada, under Section 9 of the Hindu Marriage Act, 1955 seeking restitution of the conjugal rights and she also filed a Domestic Violence Case vide D.V.C.No.424 of 2023 on the file of the I Additional Chief Metropolitan Magistrate, Vijayawada, Krishna District, under Section 12 of the Domestic Violence Act, 2005 and all the aforesaid cases are pending for adjudication before the competent Courts at Vijayawada.

II. The learned counsel for the petitioner would further contend that to cause inconvenience to the petitioner/wife, the respondent/husband had filed H.M.O.P.No.66 of 2023 on the file of the Senior Civil Judge, Bhimavaram, West Godavari District, under Section 13(1)(ia) of the Hindu Marriage Act, 1955, seeking for dissolution of marriage.

III. Learned counsel for the petitioner further contended that the petitioner being a woman, depending upon the mercy of her parents along with her female child aged about 4 years, it is very difficult for her to travel at a distance of more than 130 Kms from Vijayawada, Krishna District to Bhimavaram, West Godavari District, without any male assistance and that she was constrained to file the present petition against the respondent/husband seeking transfer of H.M.O.P.No.66 of 2023 on the file of the Senior Civil Judge, Bhimavaram West Godavari District, to the IV Additional District Judge-cum-Family Court Vijayawada, Krishna District.

4. Heard learned counsel for the petitioner.

5. Though registered notice sent to the respondent was served on him, none appeared for the respondent. Therefore, service held sufficient.

6. Perused the material available on record.

7. The material on record prim a facie goes to show that in view of the matrimonial disputes between both the spouses, the petitioner/wife has been residing separately along with her female child aged about 4 years at her parents' house at Vijayawada, Krishna District and she filed four (4) cases against the respondent/husband i.e.. Criminal case under Section 498-A I.P.C., Maintenance Case vide F.C.O.P.No.1364 of 2023, Domestic Violence Case vide D.V.C.No.424 of 2023 and also F.C.O.P.No.1468 of 2023, for restitution of conjugal rights, all the cases are pending for adjudication and the respondent/husband is also attending the Court proceedings in the aforesaid cases before the competent Courts at Vijayawada. The material on record further proves that the respondent/husband had filed H.M.O.P.No.66 of 2023 on the file of the Senior Civil Judge, Bhimavaram, West Godavari District, under Section 13(1)(ia) of the Hindu Marriage Act, 1955, seeking for dissolution of marriage and the same is also pending for adjudication,

8. The Apex Court in a case of GEETA HEERA Vs HARISH CHANDER HEERA\ held by considering the fact that "if a wife does not have sufficient funds to visit the place where the divorce petition is filed by her husband, then the transfer petition filed by the wife may be allowed."

Karthik

9. The Apex Court in a case of N.C.V. Aishwarya Vs A.S.Saravana Sha[^] held as follows:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

10. On considering the submissions made by the learned counsel for the that in petitioner and in view of the ratio laid down in the aforesaid case laws matrimonial proceedings, the convenience of the wife has to be considered than that that of the inconvenience of the husband. Therefore, I am of the considered view 1 (2000) 10 see 304 ^ 2022 LiveLaw (SC) 627 there are justifiable grounds to consider the request made by the petitioner/wife seeking transfer of H.M.O.P.No.66 of 2023 on the file of the Senior Civil Judge, Bhimavaram, West Godavari District, to the IV Additional District Judge-cum-Family Court, Vijayawada, Krishna District.

11. In the result, the present Transfer Civil Miscellaneous Petition is allowed and H.M.O.P.No.66 of 2023 on the file of the Senior Civil Judge, Bhimavaram, West Godavari District, is hereby withdrawn and transferred to the IV Additional District Judge-cum-Family Court, Vijayawada, Krishna District. The learned Senior Civil Judge, Bhimavaram, West Godavari District, shall transmit the case record in H.M.O.P.No.66 of 2023 to the IV Additional District Judge-cum-Family Court, Vijayawada, Krishna District, duly indexed as expeditiously as possible preferably within a period of two (02) weeks from the date of receipt of a copy of this order. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim order granted earlier, if any, shall stand closed.

Sd/- N NAGAMMA ASSISTANT REGISTRAR //TRUE COPY// SECTION OFFICER To,

1. The Civil (Senior Division) Judge at Bhimavaram, West Godavari District
2. The IV Additional District Judge-Cum-Family Court, Vijayawada, Krishna District.
3. One CC to Sri. Kotha Naga Surya Rao, Advocate [OPUC]
4. Three CD Copies PR vna HIGH COURT DATED: 18/06/2025 ORDER ALLOWING THE TRCMP